

25STCV12576 25STCV12576

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-07-14

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Case Number: 25STCV12576 Hearing Date: July 14, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT 17

STACY L. PELLOW

vs.

MATHEW P. MALCZYNSKI, et al.

Case No.:

25STCV12576

Hearing Date: July 15, 2026

Plaintiff's

motion for terminating sanctions is GRANTED. Defendant's answer is hereby stricken and Plaintiff may seek the entry of default with the Clerk's office. Plaintiff's request for monetary sanctions totaling \$1,078.00 against Defendant is GRANTED.

On 4/29/2025,

Plaintiff Stacy L. Pellow (Plaintiff) filed suit against Matthew P. Malczynski, Glenn E. Stern, and Glenn Stern Law (collectively, Defendants), alleging: (1) legal malpractice; (2) deceit; and (3) breach of fiduciary duty.

On 2/25/2026,
Plaintiff moved for monetary and terminating sanctions against Defendant
Matthew P. Malczynski (Defendant).

The motion is
unopposed.

Discussion

Plaintiff
argues good cause exists to grant terminating sanctions and monetary sanctions
totaling \$1,078.00.

In
support, Plaintiff notes that Defendant has ignored multiple court orders to
respond to discovery. This includes the 9/12/2025 order granting Plaintiff's
motion to compel responses to Form Interrogatories (Set One) and awarding
sanctions, as well as the 12/24/2025 order granting Plaintiff's motions to deem
requests for admission admitted and compelling responses to Form
Interrogatories (Set Two), Special Interrogatories (Set One), and Requests for
Production (Set One) within 20 days, and imposing monetary sanctions.

To
date, Defendant has not provided any responses to the outstanding discovery,
nor has he remitted any payment for terminating sanctions.

CCP section
2023.010 states that, "Misuses of the discovery process include, but are not
limited to, the following:...(g) Disobeying a court order to provide discovery...."

The nature of
sanctions to impose is within the Court's discretion. (Pember v. Superior
Court (1967) 66 Cal.2d 601, 604; Sauer v. Superior Court (1987) 195
Cal.App.3d 213, 228.) Factors that the Court may consider in deciding which
sanctions to impose include: the time that has passed since the discovery was
served; the importance of the discovery sought; whether the responding party
acted in good faith with reasonable diligence; and the existence of prior
orders compelling discovery, among others. (Deyo v. Kilbourne (1978) 84
Cal.App.3d 771, 796.)

Defendant's

conduct, wherein he has failed to comply with Court orders, failed to subsequently appear in this action, and failed to oppose this motion, indicates that he is either unwilling or unable to litigate this action. Accordingly, terminating sanctions are warranted, as are the requested monetary sanctions.

Based on the

foregoing, Defendant's motion for terminating sanctions is granted. Defendant's answer is hereby stricken and Plaintiff may seek the entry of default with the Clerk's office. Plaintiff's request for monetary sanctions totaling \$1,078.00 against Defendant is granted.

It is so ordered.

Dated: July
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.